

TENTATIVE RULING FOR CIVSB2501653
Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Sinclair v. Mercedes-Benz USA, LLC, et al

Motion: Judgment on the Pleadings

Movant: Mercedes-Benz USA, LLC (Mercedes/Defendant)

Respondent: Tracye Jean Sinclair (Sinclair/Plaintiff)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On January 15, 2025, Plaintiff filed a Complaint alleging three causes of action against Defendants and Jones Ontario Acquisition, LLC dba Mercedes-Benz of Ontario (Jones Ontario): (1) violation of Song-Beverly Act - breach of express warranty (against Mercedes only); (2) violation of Song-Beverly Act - breach of implied warranty (against Mercedes only); and (3) negligent repair (against Jones Ontario only). Defendants answered. Jones Ontario now moves for a judgment on the pleadings as to Plaintiff's third cause of action for negligent repair. Plaintiff opposes.

ANALYSIS

A party may bring a motion for judgment on the pleadings (JOP) after filing an answer and the time to demur has expired. (Code Civ. Proc., §438, subd. (b)(1) and (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548 (*Evans*).)

If the moving party is the defendant, then a motion for judgment on the pleading is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438, subd. (c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., §438, subd. (d).) Essentially, a JOP performs the same function as a general demurrer, i.e., it attacks only the defects disclosed on the face of the pleading or by matters that are judicially noticed. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) As such, the JOP admits the truth of all material facts alleged in the complaint. (*Evans, supra*, 28 Cal.App.4th at p. 549.)

The moving party shall meet and confer in person, by telephone, or by video conference, at least 5 days before the motion is filed, with the party who filed the pleading at issue for the

purpose of determining if an agreement can be reached that resolves the claims in the motion. (Code Civ. Proc., § 439, subd. (a)(1)-(2).) If no resolution is reached, the moving party shall submit a declaration stating: the means by which they met and conferred and that the parties were unable to reach a resolution; or the party who filed the pleading subject to the motion failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith. (Code Civ. Proc., § 439, subd. (a)(3)(A)-(B).) The Court finds that the instant motion was filed timely, and a proper meet and confer has now taken place.

For a claim of negligent repair, the traditional negligence elements apply, i.e., (1) legal duty, (2) breach of the legal duty, (3) causation, and (4) damages. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) A person who undertakes the repair of a product owes a duty to do so without negligence, i.e., a duty to perform those services in a good and workmanlike manner. (Civ. Code, § 1796.5.)

Negligence may be alleged generally. (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 154-155.) In California, “it is sufficient to allege the negligence in general terms, specifying, however, the particular act alleged to have been negligently done.” (*Id.* at p. 155) As a general rule, a negligence cause of action is not subject to a heightened pleading standard. (See *Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508, 514 [Under well-established principles, . . . general allegations of negligence, proximate causation and resulting injury and damages suffice to state a cause of action.]

The economic loss rule provides that, “[i]n general, there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922 (*Sheen*).) “California decisional law has long recognized that the economic loss rule does not necessarily bar recovery in tort for damage that a defective product (e.g., a window) causes to other portions of a larger product (e.g., a house) into which the former has been incorporated.” (*Jimenez, supra*, 29 Cal.4th at pp. 483-484.) However, there is a “recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services.” (*Sheen, supra*, 12 Cal.5th at p. 933.) As the *Sheen* court illustrated:

“In that context, a cause of action for negligence ensures that the consumer receives the services the professional agreed to provide. In such settings, professionals generally agree to provide ‘careful efforts’ in rendering contracted for services, but ‘most clients do not know enough to protect themselves by inspecting

the professional's work or by other independent means. (*Id.* (citations omitted).)
“Given this disparity, a claim for professional negligence can serve the important purpose of ensuring that professionals render the ‘careful efforts they have contracted to provide.’” (*Id.* (citations omitted).)

In the case at hand, there is no allegation that Plaintiff had a contractual relationship with Jones Ontario. Plaintiff generally alleges that Jones Ontario breached its duty by failing to properly store, prepare, and repair the Subject Vehicle according to industry standards, which caused damage. (Compl. ¶¶ 50-52.) The allowable generic allegations leave open the fact that that general negligence in storage, preparation as well as some repair on the alleged defect damaged another part or the vehicle as a whole thereby falling outside the economic loss rule.

RULING

1. Defendant's Motion for Judgment of the Pleadings is DENIED.
2. Movant to give Notice.